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Case Number: 25SMCV00100 Hearing Date: August 26, 2026 Dept: M

CASE NAME: Khazan v. Doheny Villa Homeowners, et al.

CASE NO.: 25SMCV00100

MOTION: Motion to Strike to the Second

Amended Complaint

HEARING DATE: 8/26/2026

LEGAL STANDARD

Any party, within the

time allowed to respond to a pleading may serve and file a notice of motion to

strike the whole or any part thereof. (CCP § 435(b)(1); Cal. Rules of Court,

Rule 3.1322(b).) The court may, upon a motion or at any time in its discretion

and upon terms it deems proper: (1) strike out any irrelevant, false, or

improper matter inserted in any pleading; or (2) strike out all or any part of

any pleading not drawn or filed in conformity with the laws of California, a

court rule, or an order of the court. (CCP §§ 436(a)-(b); Stafford v. Shultz

(1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].)

"In order to survive a

motion to strike an allegation of punitive damages, the ultimate facts showing

an entitlement to such relief must be pled by a plaintiff. [Citations.] In

passing on the correctness of a ruling on a motion to strike, judges read allegations

of a pleading subject to a motion to strike as a whole, all parts in their

context, and assume their truth. [Citations.] In ruling on a motion to strike,

courts do not read allegations in isolation. [Citation.]" (Clauson v.

Superior Court (1998) 67 Cal.App.4th 1253, 1255.) In order to

state a prima facie claim for punitive damages, a complaint must set forth the

elements as stated in the general punitive damage statute, Civil Code section

3294. (Coll. Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.)

These statutory elements include allegations that the defendant has been guilty

of oppression, fraud or malice. Civil Code section 3294 defines malice as

conduct "intended by the defendant to cause injury to the plaintiff," or

"despicable conduct which is carried on by the defendant with a willful and

conscious disregard of the rights or safety of others." (Id.) Despicable

is a powerful term used to describe circumstances that are "base," "vile," or

“contemptible.” (Coll. Hosp., supra, 9 Cal.4th at 726.) The statute

“plainly indicates that absent an intent to injure the plaintiff, “malice”

requires more than a “willful and conscious” disregard of the plaintiffs’

interests. The additional component of “despicable conduct” must be found.” (Id.)

“The mere allegation an intentional tort was committed is not

sufficient to warrant an award of punitive damages. [Citation.] Not only must

there be circumstances of oppression, fraud or malice, but facts must be

alleged in the pleading to support such a claim. [Citation.]” (Grieves v.

Superior Ct. (1984) 157 Cal.App.3d 159, 166, fn. omitted.)

“Liberality in

permitting amendment is the rule, if a fair opportunity to correct any defect

has not been given.” (Angie M. v. Superior Court (1995) 37 Cal.App.4th

1217, 1227.) It is an abuse of discretion for the court to deny leave to amend

where there is any reasonable possibility that plaintiff can state a good cause

of action. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.) The burden is

on plaintiff to show¿in what manner¿plaintiff can amend the complaint,

and¿how¿that amendment will change the legal effect of the pleading.¿(Id.)

ANALYSIS

Defendant Doheny Villa

Homeowners’ Association Inc. moves to strike the request for punitive damages

in Plaintiff Farshid Khazan's Second Amended Complaint ("SAC").

Courts have found punitive damages

were properly awarded against Homeowners Associations ("HOAs") for failure to

conduct repairs in cases involving fraud and deliberate, inordinate delay in

repairs. For example, the recent case of *Ridley v. Rancho Palma Grande*

Homeowenrs Assn., (2025) 114 Cal.App.5th 788, involved an HOA's failure to

timely investigate and repair water intrusion and mold caused by an abandoned

well. (*Id.*, at 792-796.) The underlying issues in that case were first

reported in April 2018, and remained unremedied even after trial in 2024. The

HOA delayed any effort to remediate the issue for at least 19 months. Until

then, the HOA engaged in "a pattern of falsehood [and] deception,"

deciding early on "to use any means necessary" including falsely

claiming that no experts found the existence of a well, to convince the City

and Water District, as well as homeowners, that no abandoned well existed under

the unit. (*Id.*, at 794-795, 798.) The HOA also manipulated its own experts

by withholding key information that an abandoned well might be present, which engineered

opinions favorable to the HOA's predetermined position. (*Id.*) This

decision also risked the lives of contractors sent to remove topsoil without

informing them of the known risk of an abandoned well. (*Id.*, at 807.) The HOA

also delayed known termite damage repairs. (*Id.*, at 796.) The termite

issue was known in 2010, but the HOA only fumigated the property in 2016, but otherwise did nothing until they started repairing the trim of the property in 2021. (Ibid.) At least one other court has found a punitive damages claim against an HOA and some of its board members survived the summary judgment stage where the HOA's board delayed repairs by four years, ignored their own expert reports, adopted tactics of inordinate delay, deception and intransigence in an effort to postpone or avoid paying the substantial sums necessary to make adequate repairs. (Kaye v. Mount La Jolla Homeowners Assn. (1988) 204 Cal.App.3d 1476, 1480–1481.) The HOA in that case declined to have the homeowner front the costs of the proper testing and impeded the homeowner from doing their own testing. (Id. at 1481.)

The

SAC alleges that Defendant failed to properly maintain manage, and perform the duties required under the CC&Rs and the law, causing serious habitability issues and resulting in physical and financial injury to Plaintiff. (SAC ¶ 7.) In October 2023, Plaintiff reported signs of water damage and strong mold odors inside the Unit to Defendant. Despite this notice, Defendant failed to take immediate steps to investigate or remediate the damage. (Id., ¶¶ 13, 55.) Defendant's board and property manager were dismissive of the complaint and intentionally chose not to investigate or remediate the condition for four months. (Id., ¶ 57.) During

that entire period, and for an additional several months, Plaintiff and his tenants continued to live with known water intrusion, mold odor, and related health symptoms while Defendant took no effective action. (Id.) After a four-month delay, Defendant conducted an inspection in February 2024, uncovering a substantial water leakage from the plumbing serving the common areas of the building within the Unit, contributing to water infiltration in the walls. (Id., ¶ 15.) After dispatching its own plumber(s) and mold specialist(s) in February 2024, Defendants further independently verified through the use of their own professionals, the presence of hazardous mold in the Unit, and thus had actual knowledge that the Unit was contaminated by hazardous levels of mold. (Id., ¶ 58.) Aside from property damage, the leakage caused substantial hazardous mold levels in the unit. (Id., ¶ 16.) Despite having notice of mold growth and other habitability issues, Defendant delayed addressing the issue, resulting in ongoing property damage and health risks and further causing the unit to remain uninhabitable for an extended period of time. (Id.) Defendant consciously chose, for an unreasonable period of time, not to timely detoxify, remediate, or repair the conditions rendering the Unit unsafe and uninhabitable, and failed and refused to provide or arrange for safe alternative housing, thereby knowingly leaving Plaintiff, occupants, and other inhabitants of the building, exposed to a toxic environment for an extended

period of time. (Id., ¶ 59.) It took nearly a full year after Plaintiff first alerted Defendant to pervasive mold conditions and mold-related physical symptoms for Defendant to belatedly retain a mold professional to attempt remediation. (Id., ¶¶ 17, 60.) By then, Defendant's prolonged inaction had allowed the water intrusion and contamination to persist unchecked for so long that Defendant's effort was predictably ineffective. (Id., ¶ 60.) Within weeks of Defendant's failed attempt, Plaintiff again reported renewed mold odors and recurring physical symptoms—providing Defendant with clear notice (including sharing mold reports) that the hazardous condition remained active. (Id.) Even after that renewed notice, Defendant still did not promptly investigate, contain, or meaningfully remediate, forcing Plaintiff yet again to retain his own mold specialist simply to protect health and safety. (Id.) Testing performed by specialists hired by Plaintiff in December 2024 confirmed that mold remained present and had continued to spread within the Unit. (Id.) Plaintiff promptly reported these findings to Defendant and provided the test results to Defendant. (Id.) Despite actual knowledge of the toxic conditions, Defendant continued and still continues to delay, and refuses to take timely, reasonable steps to investigate, contain, and remediate the condition and to repair the source of intrusion, thereby prolonging exposure to dangerous conditions, allowing contamination to continue spreading, and compounding both the health impacts and the property

damage. (Id., ¶ 61.) Defendants acted in their own interest by denying remediation and compensation or damage they caused, causing unnecessary delay, and failing to promptly address the conditions in the unit. (Id., ¶ 62.) Defendants also mismanaged funds allocated for maintenance and repairs which resulted in inadequate responses to maintenance needs. (Id., ¶ 64.)

These

pled facts establish that Defendant deliberately and intentionally delayed in remediating a known mold issue for at least a year. The allegations establish that the HOA is deliberately and knowingly refusing remediation of the known mold issue to this day. The SAC alleges, as matters of ultimate fact, that such conduct was done intentionally, deliberately, and in conscious disregard of Plaintiff and other homeowner's safety. Under the above noted caselaw, such facts, if proven, could constitute malicious and despicable conduct warranting a claim for punitive damages.

Accordingly,

the motion is DENIED.